CITY OF WALNUT CREEK

COMMUNITY DEVELOPMENT DEPARTMENT
CERTIFICATE OF APPLICATION STATUS

April 17, 2020

Hamed Adibnatanzi
1 Sansome Street, Suite 3500
San Francisco, CA 94104

The status of Pre-Application Review Application No. Y19-124 for the addition of commercial floor area and two residential units at 1426 South Main Street, Walnut Creek, is as checked below:

☐	COMPLETE.	Processing will commence as of the date of this letter.
☒	INCOMPLETE.	Upon submittal of the following information, your application may be deemed complete. You will then be mailed another certificate to verify the date when formal processing will begin.

PLANNING: Alan Carreon, Associate Planner (925)943-5899 x2210

Earlier this month, we had discussed your seeking a hearing before the Planning Commission to receive preliminary feedback on the potential for a parking reduction which requires a Minor Use Permit and feedback on the proposed inclusion of residential units atop the proposed commercial expansion. The hearing would occur prior preparing more detailed plans and the required reports. Specifically, you would be requesting a reduction in required parking from 32 stall stalls to 22 stalls citing that the use, the sales of specialty ornamental rugs, requires significant inventory and generates a much lower parking demand than other types of retail establishments. To that end, staff's review was conducted with less detail. If endorsed by the Planning Commission, staff expects that all of staff's comments and requirements will be addressed accordingly.

Pursuant to Section 10-2.3.203.B.1 (Minor Use Permit-Parking Reduction), applicants may request approval of a Minor Use Permit (MUP) for a parking reduction. Issuance of a MUP would be based on clear and convincing evidence and survey data that "*the probable long-term occupancy of the building, based on its design, will not generate additional parking demand*". The parking study prepared by Fehr & Peers focuses on the use of the commercial floor area rather than the building design. Meaning the functional floor plan of the design, not its external appearance, would be the basis of the decision. I do not believe the Planning Commission nor the Zoning Administrator can make that finding.

It might be more palatable for the project to be developed without the residential units which requires four parking stalls and result in 28 required parking stalls rather than 32 stalls – a potential reduction of only six stalls with respect to the 22 stalls shown in the conceptual plans.

The conceptual project would also entail a setback waiver to develop that portion at the frontage at less than the required setback outlined in the General Plan. Upon a finding by the highest approving body, the setback requirement may be waived or reduced in cases of unusual street or parcel

configuration or where such setbacks would be undesirable. I believe that given the creek setback required by Specific Plan No. 7 in combination with the 30-foot setback from the top of bank, that a waiver can be considered. If the conceptual project were proposed without residential units, the request for a parking reduction and off-site parking would be reviewed by the Zoning Administrator, and the setback waiver reviewed along with the project design by the Design Review Commission. Please contact me at your convenience to discuss the various possible scenarios of this project.

ENGINEERING, Mary Ann Bonifacio, P.E., (925)943-5899 x2242

1. Review the attached comments dated April 14, 2020.

TRAFFIC ENGINEERING, Yun Na Rhee (925)943-5899 x2219

1. Review the attached comments dated April 7, 2020.

BUILDING DIVISION, Tim Rodden, P.E., (925)943-5832

1. Please clarify how the user of disabled accessible parking space labeled #1 on Site Plan will travel to the building entrance without wheeling behind a parked vehicle other than the user's own vehicle.

CITY ARBORIST, John Davis, Board Certified Master Arborist, (925)330-1777

1. No comments at this time. An arborist report may be required at a later date depending on whether work within the dripline of trees which line the creek.

Prior to resubmittal, contact me regarding the size and number of plans for resubmittal. You are welcome to contact me or any of my colleagues above should you have questions or require clarification. I can be reached at (925) 943-5899 ext. 2210 or carreon@walnut-creek.org.

Sincerely,

ALAN B. CARREON
Associate Planner

Attachments
cc: File
City Development Team

Project Name: New Mixed Use Bldg., 1426 S. Main St

Plan Comments: 2nd Submittal

Work Order: Y19-124 (Pre-Application Review)
Prepared by: Mary Ann Bonifacio Date: 4/14/2020

Engineering Comments

Comments on the submittal are to be addressed prior to application being complete:

1. The future street setback for Main Street is 100 feet and the Project must provide the proper dedication for the half width of 50 feet from the centerline of Main Street to the property line.
2. Because the Project is required to construct a new 10 ft. wide sidewalk to conform to the City's General Specific Plan, a Public Pedestrian Access Easement (PAE) must be dedicated in order to incorporate the full width of the sidewalk since a portion of the sidewalk is located on private property.
3. No part of the Building addition and the Building foundation shall encroach into the Public right-of-way.
4. In order to utilize access, new and existing parking stalls, the Project must provide a recorded Access Easement Agreement between parcels APN 183-030-016 and APN 183-030-030. As well as, a recorded Access Easement and Parking Agreement with APN 183-030-029.
5. The traffic circulation must be shown on the plans in order to determine the necessary dimensions of the access easement to allow maneuverability of vehicles specifically at the south east of the Project due to the narrow drive aisle near the top bank of the creek.
6. If the Project proposes to create/replace between 2,500 sf – 10,000 sf of impervious area (i.e. roof, pavement, concrete), then the proposed development shall be classified as a small project and is subject to MRP Provision C.3.i. The Project would be required to install one or more of the following for the treatment of storm water runoff.
    a. Direct roof runoff onto vegetated areas
    b. Direct runoff from sidewalks, walkways, and/or patios onto vegetated areas
    c. Direct runoff from driveways and/or uncovered parking lots onto vegetated areas
    d. Construct sidewalk, walkways and/or patios with permeable surface (i.e. pavers or pervious concrete)
7. If the Project proposes to create more than 10,000 sf of impervious surface (i.e. roof, pavement, concrete), then the proposed development is subject to Provision C3 of the Municipal Regional Clean Water Permit and shall install C3 bioretention facilities to treat runoff. In addition, if the Project proposes to alter more than 50% of the existing impervious surface, then the Project shall treat the entire site. Note, if the

Project is subject to C3, further reduction of parking stalls may occur to provide space to install C3 bioretention facilities.

8. The Project is not located in a flood zone.

Traffic Engineering Comments:

1. Indicate where the loading occurs onsite. Show truck turn template into and off site and where it will be loading and unloading.
2. Driveways to be per City standard CC-3. Driveways that are two way shall be 25 feet wide for a depth of 25 feet, if one way driveway shall be 15 feet for a depth of 25 feet. (muni code 10-2.3.207 part C)

Photometric Study:

3. Photometric study to be for STREETLIGHT ONLY. Study area is on Main street up to centerline, bounded by extension of project property lines. Main street to be 1.3 average horizontal foot candle (HFC) with a 4 to 1 uniformity ratio (average/minimum). If new streetlights need to be installed it is to be per City standard TS-18.

RESOLUTION NO. 3778

A RESOLUTION APPROVING SPECIFIC PLAN NO. 7 (S. NEWELL AVE.)

WHEREAS the Planning Commission by Resolution No. 1831 adopted on August 9, 1978, recommended that Specific Plan No. 7 be adopted as outlined in Exhibits A, B and Appendix, attached thereto and made a part thereof; and

WHEREAS on September 19 and 27, 1978, the Walnut Creek City Council conducted a public hearing to consider this amendment, on which date it was closed and a decision continued to October 3, 1978; and

WHEREAS on October 3, 1978, the Council, after reviewing the recommendation of the Planning Commission decided to amend it; and

WHEREAS a Negative Declaration was completed on July 28, 1978, in compliance with CEQA, State and City Guidelines and the City Council reviewed and considered the information contained therein,

NOW THEREFORE, the City Council of the City of Walnut Creek does resolve as follows:

Section 1. Specific Plan No. 7 is hereby adopted pursuant to Gov't.C. §65503 as recommended by the Planning Commission, with changes adopted by the Council on October 3, 1978. Said plan consists of Exhibits A and B, attached hereto and made a part hereof by reference.

Section 2. This resolution shall become effective immediately upon its passage and adoption.

PASSED AND ADOPTED by the City Council of the City of Walnut Creek at a regular meeting thereof held on the 3rd day of October, 1978 by the following called vote:

AYES: Councilmen: Hildebrand, Martin, Armstrong
NOES: Councilmen: Mayor Kovar
ABSENT: Councilmen: Hazard

Margaret N. Kovar
Mayor of the City of Walnut Creek

ATTEST:

Mary L. Lucas
City Clerk of the City of Walnut Creek

I HEREBY CERTIFY that the foregoing resolution was duly and regularly passed and adopted by the City Council of the City of Walnut Creek, County of Contra Costa, State of California at a regular meeting of said Council held on the 3rd day of October, 1978.

Mary L. Lucas

City Clerk of the City of Walnut Creek

EXHIBIT A

FINDINGS:

1. The purpose of this Specific Plan is to comply with the recommendations set forth in the Core Area Plan and the Housing Element of the Walnut Creek General Plan to prepare a specific plan for the area south of Newell Avenue.

2. As indicated in the Core Area Plan, this area is unusual and unique because of the natural state of San Ramon Creek and a large undeveloped parcel in the center characterized by major tree stands and a knoll rising above the level of the remainder of the entire area. These amenities are important to the visual and natural quality of the City and should be preserved.

3. The Housing Element designates a portion of the subject area as a priority site for low and moderate income housing, requiring the City to permit residential use unless it finds the site inappropriate for multifamily development. This specific plan permits residential as well as commercial uses.

4. The Housing Element recommends that the City provide incentives for a mix of residential and commercial uses in Elective Use areas. Detailed economic analysis indicates that incentives will not work to encourage housing in the subject area. Density bonuses will be available for low-cost senior housing through provisions in the Housing Element.

CONDITIONS:

1. The designated trees shown on the attached Exhibit B and any other trees within the "Creek Preserve Area" shall remain in a natural condition, and no healthy trees of those specified above shall be removed.

2. The "Creek Preserve Area" shown on the attached Exhibit B shall generally remain in a natural condition. Existing limits of parking lots shall not be increased within the "Creek Preserve Area." However, structures which do not alter natural landforms or vegetation, and which are determined to enhance the creek without having substantial negative impact on it, shall be permitted upon specific approval by the Planning Commission. Structures, for the purpose of this condition, shall include new development as well as replacement of existing structures, but shall not include pedestrian bridges which may be permitted by the Planning Commission with minimal alteration of natural conditions.

3. Future development activity on properties which extend into the creek shall be required, as a condition of approval, to clean up those portions of the creek which are located on their property and to enter into a maintenance agreement that requires the subject area to be kept in a clean and natural condition.

4. Future development activity on properties which include the pedestrian pathway system shown on the attached Exhibit B shall be required as a condition of approval to provide such a pathway and to allow it to be accessible to adjoining property owners. Pedestrian access across the creek is encouraged as a part of the pathway system.

5. Future development activity on properties identified as needing to "consider access aggregation" on the attached Exhibit B shall be required, as a condition of approval, to either aggregate driveway locations or to provide information acceptable to the Walnut Creek Planning Commission as to why it is not feasible to do so.

6. Within the area delineated on the attached Exhibit B and noted as "Height Flexibility Area," height in excess of the three story limit and up to a maximum of four stories over parking shall be allowed for an area not to exceed 15% of a given parcel and to be reviewed and approved by the Design Review Commission for appropriateness of siting and compatibility of the design with the scale and character of the Specific Plan area. Generally appropriate and compatible height in excess of three stories should:

a. Be set back from South Main, Newell, and the possible South Broadway extension a distance to avoid significant visual impact on these streets.

b. Be visually harmonious with existing trees through design.

c. Respect views and the existing sense of openness and nature by clustering rather than being spread throughout the Specific Plan area.

d. Be essential to preserve on-site amenities.

7. Wherever possible, new development should orient toward the creek as the central focus and amenity of the Specific Plan area.

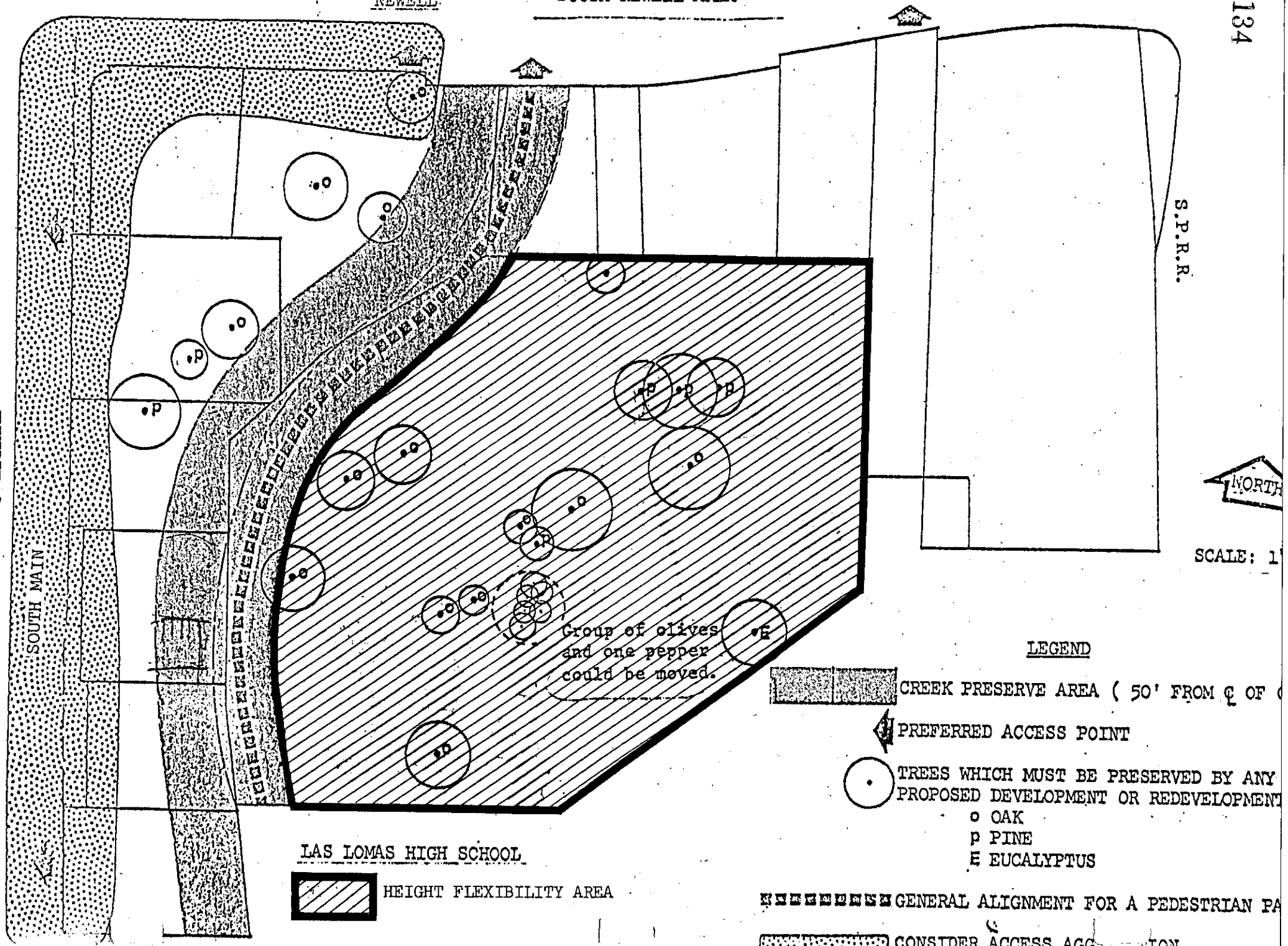
8. The entire study area is subject to inundation from an intermediate regional flood (100-year frequency). Developers will be required to keep the finished floor of habitable areas above the flood elevation. The most recent floor information provided by the Community Development Department will be utilized to obtain the most adequate estimate of the 100-year flood elevation.

9. Zoning for the entire Specific Plan area shall permit both multi-family residential as well as office and retail uses. The area should be rezoned Retail and Office (R-O) with an Overlay Zone allowing multi-family residential and requiring all development to conform to the Specific Plan. It shall be the desire of the City, however, to encourage retail and residential uses rather than offices.

AS AMENDED BY CITY COUNCIL 10/3/78

NEWELL

SPECIFIC PLAN NO. 7
SOUTH NEWELL AREA



SCALE: 1

EXHIBIT B